ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	17th Commission Meeting
DATE:	16 March 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Implementing AD in Zhung Dratshang – ADMD	In keeping with the provisions of the Asset Declaration Rules 2017, ADMD, DoPE has been following up with the Zhung Dratshang to implement AD. Despite coordinating several meetings and presentations to inform on the statutory provisions, purpose, scope and benefits of the AD System, the effort could not be materialized. Instead, the Zhung Dratshang has been coming up with lame justifications to not implement the AD. (*Series of efforts made by ACC is attached herewith).* Towards this, the ADMD proposed to convene a high-level meeting between the Commission and Lopen Lhengye to implement AD in Zhung Dratshang. Acknowledging the challenges faced by the Department, in particular, the ADMD in penetrating to a completely different field, the Commission will review the issues and deliberate again in the Commission meeting. In the meantime, the Commission directed the ADMD to follow up on the earlier correspondences.
2	Request from the IT Unit of ICAC Mauritius to share technical aspects of online AD System – ADMD & PPS	Ensuing the ACC's experience sharing session with the ICAC Mauritius on the online AD System, the ADMD has received additional request from the IT Unit of ICAC Mauritius to share insights of the online AD System, including technical assistance as deemed appropriate. Recalling the earlier decision of the Commission to accept the request from the ICAC Mauritius to sign MoU, PPS was directed to expedite the process of signing MoU before sharing insights and providing technical assistance on the online AD System, which may be initiated on the need-to-share basis. In addition, the Commission reminded the PPS to seek necessary concurrence from relevant agencies.

Commissioner 24/3

- Absent -

Commissioner

Chairperson

Summary Record of the communication between ACC and the Zhung Dratshang towards enforcing the mandatory filing of Asset declaration by the covered persons under Zhung Dratshang.

SN	Consultations/Letters/Meetings/Presentations	Outcome
1	Letter sent by ACC to the Secretary, Dratshang Lhentshog vide letter no. ACC/DoPE-PD/02/589 dated 8th May 2018 on the requirement to file Asset declaration (AD) by Zhung Dratshang.	No response received from Zhung Dratshang
2	Letter sent by ACC to venerable Laytshog Lopen vide letter no. ACC/DoPE-PD/02/1393 dated 12th October 2018 on the requirement to file Asset declaration (AD) by Zhung Dratshang.	Zhung Dratshang responded by requesting for a presentation on AD during Dratshang Koedtshog meeting.
3	ACC made a presentation on AD during Dratshang Koedtshog meeting on 23rd October 2018. Attendees: *Zhung Dratshang: Letsho Lopen, Letsho Drungchen, General Secretary, Representative of Lobdra, Shedra, Rabdey Drungchens and Lam Netens.* *ACC: Chief Tashi Jamtsho, Kinley Dorji & Dil Maya*	Venerable Laytshog Lopen shared that since further discussion is needed, the issue will be put up in the Lhentshog Meeting and the ACC will be informed on the resolution of the meeting accordingly. *In the Lhentshog meeting minutes shared with ACC on 7th March 2019, the resolution was that the issue needs further discussion between Zhung Dratshang and ACC.*
4	A meeting was conducted between Zhung Dratshang and ACC on 14th March 2019. *The meeting was attended by venerable Letshog Lopen, Dratshang Lhentshog Drungchen and from ACC the meeting was attended by the Chairperson, Commissioner In-charge, 2 officials.*	ACC to make a presentation during the Zhung Dratshang Conference since the issue needs to be put up in a larger forum.
5	A brief presentation on Asset declaration was made to the participants of the 8th Annual Conference of Zhung Dratshang (Gayduen Due Tshog) on 18th July 2019. *(Around 90 participants comprising of Dorji Lopen-Chair, Tshogi Lopen, Rabdey Lam Netens, Drungchens and heads of Lobdras and Shedras)* *ACC was represented by the Chairperson, Commissioner Jamtsho, Director, Dope, & ADMD)*	ACC and Zhung Dratshang to work on the way forward.

6	A meeting between ACC led by Director and Zhung Dratshang was held on 1st October 2019. In the meeting the final proposal of ACC was shared – **to enforce the mandatory filing of AD from the declaration year 2020 and ACC to give whatever support required to train and facilitate filing of AD.** *The meeting was attended by the former General Secretary Lopen Passang; Letsho Drungchen; Chief of AFD, DL ; ACC focal, DL.*	Zhung Dratshang to put up ACC's decision to the Lopen Lhengye. Zhung Dratshang also proposed to present the way forward from Zhung Dratshnag to ACC within October 2019. The ACC agreed to the proposal but stressed on the urgency of time and that the proposal must be made at the earliest (within October, 2019)
7	Since no proposal from Zhung Dratshnag was received even by end of November, 2019 despite repeated follow ups through e-mails and phone calls, ACC decided to enforce the mandatory filing of AD by the Zhung Dratshang from the declaration year 2020 onwards and the decision was shared with Zhung Dratshang vide letter no ACC/DoPE-ADMD/19/2019/1804 dated 11th December 2019. In the letter, the Zhung Dratshnag was also requested to appoint an Asset Declaration Administrator (ADA) at the earliest and communicate the ACC on the timing for the training to be given to the ADA and the covered persons on AD.	No response received so far
8	Team from ACC (Director, DoPE and 2 officials of ADMD) went to offer Tashi Khadar to the newly appointed General secretary on 11 Feb, 2020. ACC also took the opportunity to brief the GS on matters related to AD The GS is well aware of the issues related to AD and informed ACC that several meetings and discussion as held on the issue and that the minutes of the meeting along with an official letter would be soon shared for information.	The Zhung Dratshang would share the minutes of the meeting held and also inform on the decision of Zhung Dratshng after they hold another meeting as planned. Their decision would be shared with an official letter soon.
9	No response received from ZD so far. ADMD did not follow up after that due to the COVID-19 situation and the engagement of ZD after the passing away of His Holiness Je Thrizur Tenzin Doendrup in April, 2020. The last follow up was done through the focal, Dratshang Lhentshog on 19th February and no updates received so far. The focal shared the follow up mail and also informed verbally.	

10	Call made to the General secretary, Zhung Dratshang by the Director, DoPE to follow up on any progress/updates on 18 Feb, 2021	GS informed Director that Lopen Lhengye agreed to appoint Lopen Ugyen Namgyel as the focal person from Zhung Dratshang. Informed ACC to wait till end of February as he is waiting for the directives from the Lopen Lhengye. Followed up on 2nd March, 2021 and was informed that there is no specific directives from the Lopen Lhengye and no office order on the appointment of a focal person though a nomination of a focal has been discussed earlier.

Note: Some efforts also being made during the time of the first Commission. (Records of the official communication not available)